

SENATE No. 661

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to setting NDMA levels.

PETITION OF:

NAME:

Bruce E. Tarr

DISTRICT/ADDRESS:

First Essex and Middlesex

SENATE No. 661

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 661) of Bruce E. Tarr for legislation to set NDMA levels. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 579 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to setting NDMA levels.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any other general or special law to the contrary Section 7 of Chapter
2 21A of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by
3 inserting at the end there of the following: -

4 Section 7: (a) For purposes of this section following actions shall be taken by the
5 Department of Environmental Protection:

6 The Department of Environmental Protection shall review the Guidelines on chemicals
7 found in drinking water tested in the Commonwealth for the purposes of classifying
8 Massachusetts maximum containment levels for certain harmful compounds. The Department of
9 Environmental protection shall, with respect to n-Nitrosodimethylamine, promulgate
10 Massachusetts maximum containment levels, that shall be considered the maximum safe amount

11 of n-Nitrosodimethylamine present in drinking water so that it does not negatively affect human
12 health.

13 The Department of Environmental Protection shall, upon receiving reports of levels of n-
14 Nitrosodimethylamine outside the Massachusetts maximum containment levels, provide a copy
15 of those reports to the Clerks of the House and the Senate. The Department of Environmental
16 Protection shall then treat any such level found above the Massachusetts maximum containment
17 level as if it were a violation of the Department of Environmental Protection Drinking Water
18 regulation 310 CMR 22.00. Pursuant to 310 CMR 22.01(2) the Department of Environmental
19 Protection shall exercise its authority as it sees fit to enforce the standard of the Massachusetts
20 maximum containment levels promulgated in this section with respect to n-
21 Nitrosodimethylamine.

22 The Department of Environmental Protection shall provide a report annually to the clerks
23 of the House and the Senate that details the total number of examinations done of drinking water
24 in the Commonwealth, as well as how many of those were found to contain n-
25 Nitrosodimethylamine levels above the Massachusetts maximum containment level.